

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

-----X
ROBERT KRZYWANOWSKI

Plaintiff

INDEX#

SUMMONS

Plaintiff designates
Kings County as the
place of trial. Venue
is designated based
upon Defendant's
address and that the
transaction upon
which this
action is based took
place in Brooklyn

-against-

THE CITY OF NEW YORK, DET. BRIAN ZUPPO
and ROSE FINGERER

-----X

YOU ARE HEREBY SUMMONED to appear in the Supreme Court of
the City of New York, County of New York at the Office of said Court at 360 Adams
Street, in the County of Kings, City and State of New York, within the time provided
by law (The law provides that if this summons is served by its delivery to you
personally within the City of New York, you must appear and answer within
TWENTY days after such service; or if this summons is served by delivery to any
person other than you personally, or is served outside the City of New York, or by
publication, or by any means other than personal delivery to you within the City of
New York, you are allowed **THIRTY** days after proof of service thereof is filed with
the Clerk of this Court within which to appear and answer) and to file your answer
to the annexed complaint with the Clerk; upon your failure to answer, judgment will

be taken against you for the sum of \$6,000,000.00 with interest thereon from the day allowed by law together with costs of this action.

Dated: New York, New York
October 30, 2024

LAW OFFICES OF SAUL BIENENFELD PC

Attorney for Plaintiff
680 Central Ave #108
Cedarhurst, NY 11516
Tel: (212) 363-7701
Saul@bienenfeldlaw.com

TO:

City of New York
One Centre Street
NYC NY

Detective Brian Zuppo
70 th Precinct
154 Lawrence Ave,
Brooklyn, NY 11230

Rose Fingerer
762 East 9th Street
Brooklyn, New York 11230

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

-----X
ROBERT KRZYWANOWSKI
Plaintiff

INDEX#
VERIFIED COMPLAINT

-against-

THE CITY OF NEW YORK, DET. BRIAN ZUPPO
and ROSE FINGERER
-----X

Plaintiff, ROBERT KRZYWANOWSKI by his counsel, Saul Bienenfeld,
complaining of the defendants state as follow:

1. Plaintiff, ROBERT KRZYWANOWSKI, at all times hereinafter mentioned was and still is a resident of the County of Kings, State of New York.
2. At all times hereinafter mentioned the defendant, THE CITY OF NEW YORK was and still is a municipal corporation duly existing by virtue of the laws of the State of New York with the power and authority to carry out municipal functions including the maintenance and operation of the City of New York Police Department and at all times relevant hereto employed the defendant Detective BRIAN ZUPPO as a NYC Police Detective.
3. Defendant, Brian Zuppo, was and still is a detective police officer employed in and by New York City. Defendant Zuppo is sued individually and in his capacity as a detective police officer in and with the City of New York.
4. Defendant Zuppo was at the time of the acts complained of herein a servant and employee of New York City, and at all times herein was acting under such employment and within the scope of their authority as a detective - police officer for the City of New York.

5. On October 24, 2023, within ninety (90) days after the claim herein sued upon arose, a notice of claim in writing, sworn to by and on behalf of the claimant, was duly served on the Comptroller of the City of New York, which notice of claim set forth the names and addresses of the claimants and their attorney, the nature of the claims, the time when, the place where, and the manner in which the claims arose and the items of damage or injuries claimed to have been sustained so far as then practicable.
6. That more than thirty (30) days have elapsed since the service of said notice of claim and the plaintiffs' claims have not been adjusted or paid. That this action is brought within one (1) year and ninety (90) days from the date of the occurrence.
7. ROSE FINGERER, is an individual residing at 762 East 9th Street Brooklyn, New York in Kings County State of New York and at the time when, the place where, and the manner in which the claims arose and the items of damage or injuries claimed to have been sustained, was divorced from Plaintiff ROBERT KRZYWANOWSKI.
8. A "Stay Away" Order of Protection was granted in favor of Rose Fingerer ordering among other things that ROBERT KRZYWANOWSKI stay away from the residence and place of employment of Rose Fingerer.
9. On or about September 8, 2023, Rose Fingerer falsely reported to police officers including Detective Zuppo that ROBERT KRZYWANOWSKI violated the Stay Away order by remaining in front of their children's school waiting to pick up their children.
10. At the time that she reported this incident, Rose Fingerer did so with malice. She

was upset with her ex husband for having the ability to see their children. Her anger and resentment towards her ex husband created her malicious intent when she falsely stated to Detective Zuppo that ROBERT KRZYWANOWSKI violated a court order by remaining on the street when picking up their children after school.

11. On September 23, 2023 police officer Batsonand arrested ROBERT KRZYWANOWSKI and he was falsely charged by Detective Zuppo with Criminal Contempt in the Second Degree and Endangering the Welfare of a Child.
12. Detective Zuppo did not investigate plaintiffs claim that he was innocent and that he had video proof of such. Detective Zuppo did no investigation whatsoever and just believed the false accusations of Rose Fingerer.
13. The arrest occurred on the eve of Yom Kippur and while in custody ROBERT KRZYWANOWSKI was denied the ability to eat kosher food prior to his 25 hour fast.

FIRST CAUSE OF ACTION

14. Plaintiffs repeat and reiterate each and every allegation contained in paragraphs numbered “1” through “13” above as if more fully set forth herein.
15. On or about September 23, 2023 at approximately 11:15 P.M. at 762 East 9th Street in Brooklyn New York ROBERT KRZYWANOWSKI was falsely arrested.
16. At said date and time ROBERT KRZYWANOWSKI was lawfully in the area and not committing any crimes.

17. ROBERT KRZYWANOWSKI was charged with violating an order of protection that was issued against ROBERT KRZYWANOWSKI and in favor of Rose Fingerer.
18. Defendant Zuppo then forced and compelled plaintiff to be handcuffed and caused him to be held under arrest and imprisoned against his will. Defendant Zuppo then compelled and caused plaintiff to be locked in a holding cell at the police precinct, where plaintiff suffered the indignity and humiliation of being arrested.
19. Defendant Zuppo then refused to give any kosher food to the Plaintiff.
20. ROBERT KRZYWANOWSKI spent several hours in custody.
21. Defendant THE CITY OF NEW YORK, through its agents, servants and/or employees acted in bad faith and without probable cause in committing the aforesaid arrest and imprisonment of plaintiff.
22. At the time of his arrest, plaintiff had committed no illegal act.
23. At the time of his arrests and false imprisonment, plaintiff had not committed nor attempted to commit any crime.
24. At the time of the arrest of plaintiff, defendant THE CITY OF NEW YORK, through its agents, servants and/ or employees knew or should have known, through the exercise of proper police procedure and reasonable investigation that the aforementioned arrest and detentions were false and without probable cause.
25. Said false arrest and false imprisonment caused plaintiff to suffer severe mental distress and anguish, humiliation, physical injuries, legal expenses and damage to reputation. Plaintiff was deprived of his liberty, detained against his will,

subjected to an unlawful search and seizure and hindered and prevented from pursuing his customary and necessary activities

26. As a result of the foregoing, plaintiff ROBERT KRZYWANOWSKI demands judgment against the defendants City of New York and Detective Zuppo in the sum of ONE MILLION (\$1,000,000.00) DOLLARS.

SECOND CAUSE OF ACTION

27. Plaintiff repeats and reiterates each and every allegation contained in paragraphs numbered “1” through “26” above as if more fully set forth herein.
28. On September 23, 2024, the defendants did maliciously cause a criminal prosecution to be commenced against plaintiff, ROBERT KRZYWANOWSKI, without probable cause and in bad faith.
29. In commencing and continuing said malicious prosecution, the defendants caused the plaintiff, ROBERT KRZYWANOWSKI to be falsely charged with the crime of Criminal Contempt and other crimes.
30. Plaintiff did not commit any illegal act(s).
31. Plaintiff did not give the defendants probable cause to believe that he had committed any illegal act(s).
32. Defendant Rose Fingerer, gave false, misleading and incomplete information in causing said malicious prosecution to be initiated and continued without probable cause.
33. Defendant Zuppo in the course of his employment, gave false, misleading and incomplete information in causing said malicious prosecution to be initiated and continued without probable cause.

34. Defendants, knew or should have known, through the exercise of reasonable care that their statements, affirmations and/or testimony, was false.
35. That the District Attorneys Office refused to prosecute this matter in a timely manner and the criminal case was dismissed on January 10, 2024.
36. Said malicious prosecution caused the plaintiff, to incur legal expenses and loss of actual and potential income and to suffer severe physical and mental distress, emotional disturbances and humiliation.
37. The defendants, THE CITY OF NEW YORK, Detective Zuppo and Rose Fingerer, acted with malice in causing and continuing the prosecution with knowledge that it could not succeed.
38. As a result of said malicious prosecution, plaintiff had suffered substantial and permanent damages.
39. As a result of the foregoing, plaintiff demands judgment against all the defendants in the amount of ONE MILLION (\$1,000,000.00) DOLLARS.

THIRD CAUSE OF ACTION

40. Plaintiff repeats and reiterates each and every allegation contained in paragraphs numbered “1” through “39” above as if more fully set forth herein.
41. Defendant, THE CITY OF NEW YORK, failed to exercise reasonable care in selecting defendant Zuppo as a detective - police officer and improperly training and supervising defendant Zuppo in the skills necessary to exercise his authority as a New York City Detective - police officer.
42. Prior to and during the acts complained of herein, defendant THE CITY OF NEW YORK knew or in the exercise of their duties should have known the propensity

of defendant Zuppo to act wrongfully and illegally in the pursuit of and during the course of his duties and functions. Despite this knowledge or their duty to know, defendant THE CITY OF NEW YORK entrusted the power and authority to act as a detective police officer to defendant Zuppo. Such actions constitute gross negligence on the part of defendant THE CITY OF NEW YORK.

43. By reason of said negligence of defendant THE CITY OF NEW YORK, plaintiff has suffered and will suffer emotional, physical and mental distress for which he may require in the future medical and therapeutic care and treatment.

44. By reason of the aforesaid injuries, plaintiff has been prevented from pursuing his customary activities and employment for which he has suffered and will suffer considerable losses.

45. As a result of the forgoing, plaintiff ROBERT KRZYWANOWSKI demands judgment against the defendants City of New York and Detective Zuppo in the amount of ONE MILLION (\$1,000,000.00) DOLLARS.

FOURTH CAUSE OF ACTION

46. Plaintiff repeats and reiterates each and every allegation contained in paragraphs numbered “1” through “45” above as if more fully set forth herein.

47. The actions of the defendants hereto described constitute unlawful arrests and detention all in violation of plaintiff ROBERT KRZYWANOWSKI’S civil rights.

48. As a result of the conduct and actions of defendant Zuppo who was acting under color of law and who used excessive force, did deprive plaintiff of his liberty and caused false charges to be lodged against plaintiff and violated the plaintiffs’ rights guaranteed by the First, Fourth, Fifth and Fourteenth Amendments to the

United States Constitution, the Civil Rights Act of 1871, 42 U.S.C. Sections 1981 and 1983 and comparable provisions of New York State Constitution, and New York State Law.

49. As a result of the foregoing, plaintiff ROBERT KRZYWANOWSKI demands judgment against the defendants City of New York and Detective Zuppo in the amount of ONE MILLION (\$1,000,000.00) DOLLARS.

FIFTH CAUSE OF ACTION

50. Plaintiff repeats and reiterates each and every allegation contained in paragraphs numbered “1” through “49” above as if more fully set forth herein.
51. As a result of the foregoing, plaintiff ROBERT KRZYWANOWSKI demands judgment against all the defendants for punitive damages in the amount of TWO MILLION (\$2,000,000.00) DOLLARS, so as to deter defendants from the gross, malicious conduct hereinabove described that shocks the public conscience, together with interest, costs and such other and further relief as appears reasonable and just.

WHEREFORE, plaintiff ROBERT KRZYWANOWSKI respectfully demands judgment against the defendants in the amount of FOUR MILLION (\$4,000,000.00) DOLLARS in compensatory damages and TWO MILLION (\$2,000,000.00) DOLLARS in punitive damages, together with interest, costs and disbursements.

Dated: Cedarhurst, New York

October 30, 2024

Yours, etc.

SAUL BIENENFELD, ESQ.

Law Offices of Saul Bienenfeld P.C.

Attorney for Plaintiff

ROBERT KRZYWANOWSKI

680 Central Ave 450 Seventh Avenue

Suite 108

Cedarhurst, N.Y. 10123

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To:

City of New York
One Centre Street
NYC NY

Detective Zuppo
70 th Precinct
154 Lawrence Ave,
Brooklyn, NY 11230

Rose Fingerer
762 East 9th Street
Brooklyn, New York

VERIFICATION

STATE OF NEW YORK)

) ss:

COUNTY OF NEW YORKS)

Saul Bienenfeld, being duly affirmed, deposes and says that he has read the annexed

VERIFIED COMPLAINT

and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information. I make this verification in lieu of my client since my client does not reside in the county in which I maintain my office.

Dated: New York, New York
November 1, 2024

_____/s/
Saul Bienenfeld